

Court No. - 29

Case :- WRIT - C No. - 26255 of 2010

Petitioner :- M/S Baba Cold Storage And Ice Factory

Respondent :- DvvnI And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

Heard learned counsel for the petitioner. Sri Rajesh Tripathi, learned counsel appears for respondents.

The petitioner has been asked to install 11 KV Oil Circuit Breaker (OCB) in its premises.

It is submitted that the petitioner has already deposited the amount required for installation of OCB and that the liability of the installation of OCB is of the Department under para 4.16 (c) of Electricity Supply Code.

It is further submitted that the petitioner is paying more than Rs. One lac every month towards electricity bills.

The petitioner may install 11 KV OCB at his own costs, which shall be subject to the result of the writ petition. If the petitioner succeeds, he will be permitted to deduct the costs of the OCB from the electricity bill.

The respondents are granted four weeks time to file counter affidavit. One week thereafter to rejoinder affidavit.

List on 27.7.2010.

Order Date :- 18.5.2010

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Court No. - 40

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Respondent :- DvvnI And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Rajesh Tripathi

Hon'ble Siddhartha Varma,J.

Hon'ble Vikas Budhwar,J.

Sri Saroj Giri holding brief of Sri Mayank Agrawal, learned counsel for the petitioner states that due to efflux of time, the writ petition has rendered infructuous and the same be dismissed as having become infructuous.

Learned Standing Counsel has no objection to the writ petition being dismissed as having become infructuous.

The writ petition is accordingly **dismissed**.

Order Date :- 30.8.2022

N.S.Rathour

(Vikas Budhwar,J.)

(Siddhartha Varma,J.)